

Haridwar Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 October 2020 · WRIT - C No. - 13882 of 2020 · **Writ disposed of; petitioner directed to Executive Engineer under clause 6.5 for a time-bound decision.**

HEADNOTE

A consumer's writ to quash a recovery citation and to compel reconnection was disposed of on the licensee's plea of alternative remedy. The High Court directed that if an application is filed before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005 within seven days, it shall be decided within fifteen days after hearing the petitioner. Merits of the recovery and reconnection were not examined.

FACTUAL SUMMARY

Haridwar Yadav invoked Article 226 seeking certiorari to quash a recovery citation dated 14 June 2019 issued by respondent no. 4, and mandamus directing respondents 5 and 6 to reconnect his electricity and not to harass him in pursuance of that notice. Counsel for the Electricity Department submitted that the petitioner had an alternative remedy before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. The petition was heard on 5 October 2020 after two adjournments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Alternative remedy before Executive Engineer for disputed recovery and reconnection

HOLDING

Where a consumer challenges a recovery citation and seeks reconnection by writ, and the licensee points to the statutory remedy before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005, the High Court will dispose of the petition without examining merits and direct that an application filed under clause 6.5 within seven days shall be decided within fifteen days after hearing the consumer. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy The Court accepted the licensee's plea that the consumer's challenge to a recovery citation and prayer for reconnection lay before the Executive Engineer under clause 6.5, and disposed of the writ with a time-bound direction to decide an application so filed. ¶ 1

billing-objection-to-executive-engineer-under-6.5 Objection to the recovery citation dated 14 June 2019 was left to be raised before the Executive Engineer under clause 6.5 rather than on the writ side. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 14 JUNE 2019 AND ENTITLEMENT TO RECONNECTION

The Court did not examine the merits of the citation or the disconnection; those issues were left to the Executive Engineer under clause 6.5. ¶ 1